

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 23, 2026 TIME: 8:30 A.M.

Based on the Court's review of the companion family law action (25FL00030), the vehicle was ordered returned to defendant by March 1, 2026, if plaintiff could not obtain financing. (Minute Order, December 2, 2025, 25FL00030.) Based upon the evidence before it, this Court will not overturn the prior family court order. Further, plaintiff's complaint does not set forth any cognizable claim for conversion or replevin.

No. 25CV01226

AMERICAN EXPRESS NATIONAL BANK v. PETERSON

**(UNOPPOSED) PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/
ADJUDICATION**

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff American Express against defendant Tucker Peterson seeking \$15,227.97 for an unpaid credit card debt. There is a single cause of action for breach of contract. Defendant is self-represented and filed a general denial. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Defendant applied to plaintiff for a credit card account and entered into written credit card account agreement with plaintiff for the account number ending in 1001 (the "Account"). (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") 1.) Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement when defendant applied for, received or used the credit card account. In addition, the Cardmember Agreement provides that use of the card constitutes acceptance of the agreement. (UMF 2.) After receiving the credit card, purchases were made by the use of the account and the charging of various goods, services and cash advances. Plaintiff complied with its obligations under the Agreement by paying vendors for all charges that were made on defendant's account. The principal balance of \$15,227.97 prayed for in the complaint results from defendant's use of said account. (UMF 3.)

Payments and charges are duly reflected on the computerized credit card record regularly kept and maintained by plaintiff in connection with defendant's credit card account. Those records were provided on a monthly basis in the form of billing statements to defendant reflecting all debits and credits to defendant's credit account. (UMF 4.) There is no record that there is any unresolved dispute between the parties and/or that defendant asserted a valid

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objection to the balance shown as due and owing on the monthly statements provided to him. (UMF 5.) Before February 25, 2025, defendant defaulted in making the payments due under the terms of the Cardmember Agreement and plaintiff accelerated the account balance so that the entire unpaid balance on the account became immediately due and payable. (UMF 6.) The last payment applied to the account was on or about July 25, 2024. (UMF 7.) Defendant owes plaintiff \$6,757.40. (UMF 8.)

III. SUMMARY JUDGMENT LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that “there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law...” (Code Civ. Proc., § 437c, subd. (c).) In making this determination, the court may rely on “affidavits, declarations ... and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b).) The plaintiff “may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

Defendants moving for summary judgment bear the burden of persuasion that one or more elements of the cause of action in question cannot be established or that there is a complete defense thereto. In general, a moving defendant must present evidence that, if uncontradicted, “would constitute a preponderance of evidence that an essential element of the plaintiff’s case cannot be established....” (*Kids’ Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 879.) If defendant fails to meet this burden, its motion must be denied and plaintiff need not make any showing at all. Defendant can show that an essential element of plaintiff’s claim cannot be established by presenting evidence (discovery responses, deposition testimony, etc.) that plaintiff does not possess *and* cannot reasonably obtain needed evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855, fn. 23.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Id.* at p. 850.) Each material fact must have a citation to supporting evidence. (Code Civ. Proc., § 437c, subd. (b)(1).) If a triable issue is raised as to any of the facts in the separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Opposition declarations are to be liberally construed while the moving party’s evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

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IV. DISCUSSION

The Court finds the above facts are sufficient to satisfy the elements of plaintiff's claims. The burden therefore shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has failed to meet this burden as he has not filed an opposition and raised any triable issue of disputed fact. Plaintiff is therefore entitled to judgment against defendant in the amount of \$15,227.97.

Plaintiff's request for judicial notice of the federal consumer credit protection statutes 15 USCS § 1666 and 12 CFR § 202.12 is granted.

No. 25CV03943

DEPENAU v. BARNES

DEFENDANT BARNES' MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

The motion to compel arbitration is denied.

I. BACKGROUND AND MOTION

Plaintiff Paul Depenau, through his guardian ad litem and sister Judy Depenau, asserts he was the victim of a fraudulent loan transaction. He is 68 years old with alleged dementia and reduced or diminished cognitive capacity. He owns a home in Boulder Creek. In August 2024 defendants Milestone Financial, LLC dba MERS Link 4 (lender) and Levy Barnes and Mortgage Dynamics (broker) arranged a \$115,000.00 business purpose loan secured by Depenau's residence. Depenau asserts that he was not involved in the loan transaction but that his stepdaughter, Angela Newton, "acting without authority and for her own benefit, used Paul's [Depenau's] home and signature to obtain funds she kept for herself. Paul had no business, no knowledge of the loan, and no capacity to consent." (Compl. at ¶ 3.) The complaint alleges causes of action for financial elder abuse, breach of fiduciary duty, and declaratory relief related to the loan.

Self-represented defendant Barnes brings this motion to compel arbitration. Barnes asserts that he is the president and CEO of Dynamic Real Estate Services dba Mortgage Dynamics. He contends the loan at issue was intended for commercial business purposes. The loan documents contain an arbitration provision that requires disputes arising out of the loan to be resolved through binding arbitration. (Decl. of Barnes at ¶¶ 2-5.) He attaches a copy of the Promissory Note ("Note") which includes the arbitration provision as well as an